

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SEAN GADSDEN and LAVERA CARTER,

Plaintiffs,

-against-

POLICE OFFICER JOSE LIZARDO, Tax No. 944739,
SERGEANT PETER SCHULZ, Tax No. 937507, POLICE
OFFICER TASHIDA WILSON, Shield No. 17067,
DETECTIVE JAMES SIMPSON, Shield No. 2444,
POLICE OFFICER SEAN DESTEFANO, Shield No.
13029, SERGEANT JOSEPH W. BURCKHARD, Shield
No. 12749, POLICE OFFICER TERRENCE
BLUMENBERG, Shield No. 1830, DETECTIVE JAVIER
APONTE, Shield No. 1102, POLICE OFFICER CLAUDE
MEDE, Shield 3751, DETECTIVE WILLIAM MILLER,
Shield No. 153,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiffs designate Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 14, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiffs
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER JOSE LIZARDO, Tax No. 944739, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
SERGEANT PETER SCHULZ, Tax No. 937507, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
POLICE OFFICER TASHIDA WILSON, Shield No. 17067, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
DETECTIVE JAMES SIMPSON, Shield No. 244, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
POLICE OFFICER SEAN DESTEFANO Shield No. 13029, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
SERGEANT JOSEPH W. BURCKHARD, Shield No. 12749, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
POLICE OFFICER TERRENCE BLUMENBERG, Shield No. 1830, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
DETECTIVE JAVIER APONTE, Shield No. 1102, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
POLICE OFFICER CLAUDE MEDE, Shield 3751, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
DETECTIVE WILLIAM MILLER, Shield No. 153, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038

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Defendants.

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Plaintiffs SEAN GADSDEN and LAVERA CARTER, by their attorneys, Jacobs & Hazan, LLP, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On December 15, 2015, at approximately 7:00 a.m., plaintiffs SEAN GADSDEN and LAVERA CARTER were lawfully present inside of 1171 Grenada Place, Bronx, NY, when the defendant police officers unlawfully entered the premise without probable cause or any legal justification. The defendant officers unlawfully searched plaintiffs' person and the entire premises, and were informed immediately after entering the apartment that plaintiffs did not live in the premises. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiffs without probable cause or any legal justification to accuse plaintiffs of committing a crime or violating the law in any manner. The defendants transported plaintiffs against their will to the 47th precinct. Thereafter, the defendants denied plaintiffs the right to due process and a fair trial and maliciously prosecuted plaintiffs until all

changes against plaintiffs were dismissed and sealed on October 18, 2016. Plaintiffs were deprived of their constitutional rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied them the right to a fair trial, and maliciously prosecuted plaintiffs in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SEAN GADSDEN is and was at all times relevant herein a resident of the State of New York.

3. Plaintiff LAVERA CARTER, is and was at all times relevant herein a resident of the State of New York.

4. POLICE OFFICER JOSE LIZARDO, Tax No. 944739, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. POLICE OFFICER JOSE LIZARDO, Tax No. 944739, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

6. POLICE OFFICER JOSE LIZARDO, Tax No. 944739, is being sued in his individual and official capacity.

7. SERGEANT PETER SCHULZ, Tax No. 937507, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. SERGEANT PETER SCHULZ, Tax No. 937507, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

9. SERGEANT PETER SCHULZ, Tax No. 937507, is being sued in his individual and official capacity.

10. POLICE OFFICER TASHIDA WILSON, Shield No. 17067, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. POLICE OFFICER TASHIDA WILSON, Shield No. 17067, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

12. POLICE OFFICER TASHIDA WILSON, Shield No. 17067, is being sued in her individual and official capacity.

13. DETECTIVE JAMES SIMPSON, Shield No. 2444, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. DETECTIVE JAMES SIMPSON, Shield No. 2444, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

15. DETECTIVE JAMES SIMPSON, Shield No. 2444, is being sued in his individual and official capacity.

16. POLICE OFFICER SEAN DESTEFANO, Shield No. 13029, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

17. POLICE OFFICER SEAN DESTEFANO, Shield No. 13029, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

18. POLICE OFFICER SEAN DESTEFANO, Shield No. 13029, is being sued in his individual and official capacity.

19. SERGEANT JOSEPH W. BURCKHARD, Shield No. 12749, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

20. SERGEANT JOSEPH W. BURCKHARD, Shield No. 12749, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

21. SERGEANT JOSEPH W. BURCKHARD, Shield No. 12749, is being sued in his individual and official capacity.

22. POLICE OFFICER TERRENCE BLUMENBERG, Shield No. 1830, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

23. POLICE OFFICER TERRENCE BLUMENBERG, Shield No. 1830, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

24. POLICE OFFICER TERRENCE BLUMENBERG, Shield No. 1830, is being sued in his individual and official capacity.

25. DETECTIVE JAVIER APONTE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

26. DETECTIVE JAVIER APONTE is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

27. DETECTIVE JAVIER APONTE is being sued in his individual and official capacity.

28. POLICE OFFICER CLAUDE MEDE, Shield 3751, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

29. POLICE OFFICER CLAUDE MEDE, Shield 3751, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

30. POLICE OFFICER CLAUDE MEDE, Shield 3751, is being sued in his individual and official capacity.

31. DETECTIVE WILLIAM MILLER, Shield No. 153, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

32. DETECTIVE WILLIAM MILLER, Shield No. 153, is and was at all times relevant herein, assigned to Narcotics Borough Bronx.

33. DETECTIVE WILLIAM MILLER, Shield No. 153, is being sued in his individual and official capacity.

34. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

35. At all times relevant hereto, the CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

36. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

37. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

38. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

39. On December 15, 2015, at approximately 7:00 a.m., plaintiffs were lawfully present inside of 1171 Grenada Place, Bronx, New York.

40. On December 15, 2015, at approximately 7:00 a.m., the defendant police officers unlawfully entered 1171 Grenada Place, Bronx, New York.

41. Plaintiffs immediately informed the defendant police officers that they did not live at 1171 Grenada Place, Bronx, New York.

42. The defendant police officers unlawfully pulled down Plaintiff Gadsden's pants and subjected him to an unlawful strip search without reasonable suspicion or probable cause.

43. At no time relevant herein did defendants recover any drugs, weapons, or contraband from plaintiffs' person or in plaintiffs' possession, custody, or control.

44. At no time relevant herein did plaintiffs commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe the plaintiffs committed a crime or violated the law.

45. Nevertheless, plaintiffs was unlawfully handcuffed, arrested, and transported against their will to the 47th Precinct where they were searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

46. After several hours in unlawful custody, plaintiffs were transported to Bronx Central Booking and placed in a holding cell.

47. The defendant police officers intentionally provided the Bronx County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting plaintiffs and falsely charged plaintiffs with crimes they did not commit.

48. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiffs.

49. On December 17, 2015, after more than 48 hours in unlawful custody, plaintiffs were arraigned in Bronx Criminal Court and charged with crimes they did not commit.

50. Plaintiffs were unlawfully charged with Criminal Possession of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Seventh Degree, and Criminally Using Drug Paraphernalia in the Second Degree.

51. On December 17, 2015, Plaintiff Lavera Carter was arraigned in Bronx Criminal Court and the Judge released her on her own recognizance and she was released from custody.

52. On December 17, 2015, Plaintiff Sean Gadsden was arraigned in Bronx Criminal Court and the Judge set bail.

53. Plaintiff Sean Gadsden was not able to post, and plaintiff Sean Gadsden was remanded to custody of the Department of Correction.

54. On December 18, 2015, plaintiff Sean Gadsden was able to post bail and was released from custody.

55. Thereafter, on January 29, 2016, based on the false, misleading, and/or incomplete information provided by the defendant police officers, the grand jury indicted plaintiffs for crimes they did not commit.

56. The presumption of probable cause created by the Grand Jury indictment is rebuttable in this case because the indictment was based upon false statements told to the grand jury and/or false information documented in reports and paperwork by the defendant police officers.

57. Specifically, the defendant police officers falsely stated in the grand jury that plaintiffs were in possession, custody, and control of the controlled substances and paraphernalia allegedly recovered, despite knowing that, in fact, plaintiffs did not reside in the house where the alleged substances and paraphernalia were recovered and that none of said substances or paraphernalia were recovered on plaintiffs' person or in plaintiffs' possession, custody, or control.

58. Thereafter, plaintiffs were forced to appear in Court on approximately nine (9) occasions before all charges were dismissed on October 18, 2016.

59. Some of the police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial and malicious prosecution of plaintiffs.

60. The unlawful search, false arrest/imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiffs by the individually named defendants caused plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

61. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of their right to fair trial and maliciously

prosecuted without probable cause in violation of plaintiffs' right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of their right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

64. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

68. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

70. Defendants lacked probable cause to search plaintiffs.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

73. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

75. Defendants commenced and continued a criminal proceeding against plaintiffs.

76. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.

77. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

78. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

79. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION**Denial of Right to Fair Trial/Due Process**

82. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

84. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

85. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

86. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

87. As a result of the foregoing, plaintiffs, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of her safety, and they were humiliated and subject to other physical constraints.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Unlawful Strip Search

96. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Plaintiff Gadsden was strip-searched by defendants without an individualized reasonable suspicion that plaintiff Gadsden was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the seizure and arrest.

98. The individually named defendant police officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the NYPD, which are therefore responsible for their conduct.

99. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

100. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, SEAN GADSDEN and Plaintiff, LAVERA CARTER demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 14, 2018

By: _____/s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER JOSE LIZARDO, Tax No. 944739, Narcotics Borough Bronx, One Police Plaza, New York, NY, 10038
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Police Plaza, New York, NY, 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not Plaintiffs is that Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
 December 14, 2018

/s/
STUART E. JACOBS